

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cloey Romans	Team: Squad #11	CCRB Case #: 202104779	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 08/05/2021 12:30 PM	Location of Incident: 60 Precinct Stationhouse and § 87(2)(b)		18 Mo. SOL 2/5/2023		Precinct: 60
Date/Time CV Reported Thu, 08/12/2021 11:38 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 08/12/2021 11:38 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Vincent Lindner	03136	945921	060 DET
2. LT Alexander Bobo	00000	947985	060 DET
3. DT3 Darnell Forrester	06140	950431	060 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Diane Rivera	01733	943737	060 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . DT3 Vincent Lindner	Abuse: Detective Vincent Lindner threatened to arrest § 87(2)(b)	A . Unsubstantiated
B . DT3 Vincent Lindner	Abuse: Detective Vincent Lindner threatened to arrest § 87(2)(b)	B . Unsubstantiated
C . DT3 Vincent Lindner	Abuse: Detective Vincent Lindner detained § 87(2)(b)	C . Substantiated
D . DT3 Vincent Lindner	Abuse: Detective Vincent Lindner detained § 87(2)(b)	D . Substantiated
E . DT3 Darnell Forrester	Abuse: Detective Darnell Forrester interfered with § 87(2)(b) use of a recording device.	E . Unsubstantiated
F . LT Alexander Bobo	Abuse: Lieutenant Alexander Bobo deleted information on § 87(2)(b) electronic device.	F . Substantiated

Case Summary

On August 12, 2021, § 87(2)(b) submitted this complaint to the Civilian Complaint Review Board via Call Processing System.

At approximately 12:30 p.m. on August 5, 2021, Police Officers from the 60th Precinct, supervised by Sergeant Diane Rivera of the 60th Precinct, responded to § 87(2)(b) Brooklyn, for an assault and a Shot Spotter notification. Upon arriving on the scene, it was determined that § 87(2)(b) had been assaulted by § 87(2)(b) and § 87(2)(b) mother, § 87(2)(b) called 911. During the fight, multiple gunshots were fired by an unknown individual to disperse the fight, which activated a Shot Spotter. § 87(2)(b) and § 87(2)(b) were transported to the 60th Precinct stationhouse to file a report against § 87(2)(b).

At approximately 12:39 p.m., § 87(2)(b) and § 87(2)(b) arrived at the 60th Precinct Stationhouse and were placed in a Detective Interview Room on the second floor of the stationhouse. § 87(2)(b) and § 87(2)(b) were interviewed by Detective Vincent Linder of the 60th Precinct Detective Squad, regarding the fight with § 87(2)(b) and were also asked about § 87(2)(b) boyfriend, § 87(2)(b) or § 87(2)(b). When § 87(2)(b) refused to provide any additional information about her boyfriend, Det. Lindner threatened to arrest § 87(2)(b) and § 87(2)(b) (**Allegations A and B: Abuse – Unsubstantiated**). Instead of being arrested, § 87(2)(b) and § 87(2)(b) were locked inside the interview room (**Allegations C and D: Abuse – Substantiated**). After being detained inside the interview room for at least three and a half hours, § 87(2)(b) made a Facebook Live recording on her cellphone notifying her followers that she was detained. Det. Darnell Forrester of the 60th Precinct Detective Squad walked past the interview room and observed § 87(2)(b) on her phone recording inside, then entered the room to inform § 87(2)(b) that she could not record inside the interview room. Once inside, Det. Forrester attempted to grab the cell phone out of § 87(2)(b) hand to stop her recording (**Allegation E: Abuse – Unsubstantiated**), at which point Lt. Alexander Bobo of the 60th Precinct Detective Squad overheard the commotion and entered the interview room as well. Lt. Bobo directed Det. Forrester to leave the room, then told § 87(2)(b) that she and § 87(2)(b) would not be able to leave the stationhouse until she deleted the video recording she made (**Allegation F: Abuse – Substantiated**). § 87(2)(b) deleted the recording, then she and § 87(2)(b) were released.

No summonses or arrests were made on August 5, 2021. § 87(2)(b)

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Vincent Lindner threatened to arrest § 87(2)(b).

Allegation (B) Abuse of Authority: Detective Vincent Lindner threatened to arrest § 87(2)(b).

§ 87(2)(b) and § 87(2)(b) provided consistent testimony that at approximately 11:30 a.m. on August 5, 2021, § 87(2)(b) arrived at her home, located at § 87(2)(b) Brooklyn, where § 87(2)(b) and approximately sixteen other individuals were waiting for § 87(2)(b). § 87(2)(b) then assaulted § 87(2)(b) at which point an unknown male individual pulled out a gun and fired shots into the air to disperse the fight. No one was injured by the gunshots and all individuals fled the scene. § 87(2)(b) called § 87(2)(b) and told her what had happened, and § 87(2)(b) called 911 and then headed home to be with § 87(2)(b). Once § 87(2)(b) and § 87(2)(b) were together outside § 87(2)(b) several marked police vehicles arrived

and asked the women what had happened. § 87(2)(b) and § 87(2)(b) primarily spoke to Sgt. Rivera, who determined that § 87(2)(b) was the victim of the assault and § 87(2)(b) was the perpetrator. § 87(2)(b) told Sgt. Rivera that they wanted to press charges against § 87(2)(b). Sgt. Rivera asked § 87(2)(b) and § 87(2)(b) to go to the 60th Precinct Stationhouse to provide a statement and file a report against § 87(2)(b), § 87(2)(b) and § 87(2)(b). § 87(2)(b) consented and got into a police vehicle with two unknown male officers and were transported to the station house. Neither § 87(2)(b) nor § 87(2)(b) saw Sgt. Rivera or the two male officers again after arriving at the station house. Both women stated that they went to the stationhouse voluntarily under the impression they would be there briefly to file a report. Upon arriving at the stationhouse, § 87(2)(b) and § 87(2)(b) were escorted upstairs by Det. Lindner and placed into an interview room. After being placed into the room, Det. Lindner left. § 87(2)(b) and § 87(2)(b) were inside the interview room for approximately one or one and a half hours without anyone coming to speak with them. § 87(2)(b) became agitated from the long wait and began making a video recording on her cellphone, at which point Det. Lindner almost immediately reentered the room. He did not say anything about § 87(2)(b) cell phone, and she left the audio recording going. Det. Lindner began asking § 87(2)(b) about the assault, then started asking questions about § 87(2)(b) boyfriend, “§ 87(2)(b) whom § 87(2)(b) and § 87(2)(b) found accusatory. Both § 87(2)(b) and § 87(2)(b) denied that § 87(2)(b) was on the scene and did not want to speak to Det. Lindner about him. Det. Lindner appeared to become frustrated that § 87(2)(b) was unwilling to talk about § 87(2)(b) and said, “Oh, you don’t want to talk? Fine. I’m going to send my troopers up here.” Det. Lindner left the room and locked the door behind him. Both § 87(2)(b) and § 87(2)(b) interpreted Det. Lindner’s statement and subsequent locking them in the room meant he was going to arrest the women for not speaking to him (Board Review 01 and 02).

A cell phone audio recording made by § 87(2)(b) during her and § 87(2)(b) interview with Det. Lindner captures Det. Lindner asking § 87(2)(b) if her boyfriend, § 87(2)(b) was on the scene during the assault. § 87(2)(b) interjects and says, “That’s it. We didn’t come here to get interrogated. That’s not what we were told” and Det. Lindner responds, “No? Okay. That’s fine. No problem, hang tight. I’ll get patrol to come up here.” § 87(2)(b) asks, “Patrol for what?” Det. Lindner does not respond to the question and appears to leave the interview room as a door is heard closing immediately after (beginning at the 3:00 mark) (Board Review 09). During his CCRB testimony, Det. Lindner was played said audio recording and confirmed it was his voice on the audio file, speaking with § 87(2)(b) and § 87(2)(b) (Board Review 03).

Upon arriving at § 87(2)(b) Sgt. Rivera was informed by an officer that § 87(2)(b) and § 87(2)(b) had gotten into a physical altercation. Based on the information the information she was provided § 87(2)(b) was the victim and was attacked by § 87(2)(b) Sgt. Rivera canvassed the location and saw several bullet casings. Sgt. Rivera did not know if the casings were related to the assault but called the 60th Precinct Detective Squad to notify them and stated it would now become their investigation as it involved a firearm. Sgt. Rivera denied having any further involvement in the incident or investigation and denied knowing the eventual outcome of § 87(2)(b) or § 87(2)(b) interactions with other officers (Board Review 04).

Det. Lindner stated he went to the incident location upon receiving notification by uniformed officers of the 60th Precinct that bullet casings were found at the location of an assault. On the scene, Sgt. Rivera told Det. Lindner that § 87(2)(b) was the assailant and had been removed to the hospital for her injuries but would then be brought to the stationhouse for processing. Det. Lindner was told by a uniformed officer, whom he did not recall the identity of, that § 87(2)(b) may be a witness for the shooting and would come to the stationhouse to provide a witness statement. Det. Lindner went to the 60th Precinct Stationhouse and met with § 87(2)(b) and § 87(2)(b) in an interview room on the second floor. Det. Lindner went into the interview room to

“get preliminary information” about the incident. Det. Lindner stated he had only asked § 87(2)(b) what her name was, when § 87(2)(b) immediately interjected and told him that § 87(2)(b) would not be providing her name and that they wanted to speak with a black officer. Det. Lindner immediately left the room and informed Lt. Bobo what was happening and believed that Lt. Bobo then spoke to § 87(2)(b) and § 87(2)(b). Det. Lindner denied having any further action with either woman or denied knowing when they left the station. Det. Lindner initially denied telling § 87(2)(b) or § 87(2)(b) they could be arrested but was then played the audio recording made by § 87(2)(b). Det. Lindner confirmed the recording was his conversation with § 87(2)(b) and § 87(2)(b) on the incident date. Det. Lindner denied recalling asking about § 87(2)(b) boyfriend but stated he had told § 87(2)(b) and § 87(2)(b) that he would get patrol because when they refused to speak any further, he was going to have them removed from the stationhouse by patrol officers. Det. Lindner denied knowing why he did not escort § 87(2)(b) or § 87(2)(b) from the stationhouse himself and denied recalling if he informed patrol officers to escort them out. Det. Lindner stated after speaking with Lt. Bobo, he knew nothing further of § 87(2)(b) and § 87(2)(b) time at the stationhouse (Board Review 03).

The DD5s for § 87(2)(b) investigation illustrated that on the incident date, she was not suspected of any criminal activity and could not have been arrested for any known offenses at the time in which she was at the 60th Precinct Stationhouse (Board Review 11).

It is undisputed that Det. Lindner told § 87(2)(b) and § 87(2)(b) that he would call patrol, § 87(2)(g)

Therefore, it is recommended **Allegations A and B be Unsubstantiated.**

Allegation (C) Abuse of Authority: Detective Vincent Lindner detained § 87(2)(b)

Allegation (D) Abuse of Authority: Detective Vincent Lindner detained § 87(2)(b)

BWC video from Sgt. Rivera captures the totality of her time at § 87(2)(b) Brooklyn. At no point does Sgt. Rivera interact personally with § 87(2)(b) or any civilian. Sgt. Rivera speaks to officers on the scene regarding the altercation between § 87(2)(b) and § 87(2)(b). § 87(2)(b) then determines that § 87(2)(b) is the perpetrator and will be arrested, and Sgt. Rivera directs officers to escort § 87(2)(b) to the hospital to process her for arrest after treatment. Sgt. Rivera never makes any directives regarding § 87(2)(b) or § 87(2)(b) and does not advise that they be brought to the stationhouse or removed from the scene. Sgt. Rivera is not captured interacting with any detective. Sgt. Rivera leaves the incident location while § 87(2)(b) and § 87(2)(b) are still on the scene (Board Review 08). No BWC video yielded for any other officer on the scene at § 87(2)(b) Brooklyn, illustrates them removing § 87(2)(b) or § 87(2)(b) from the scene (Board Review 07).

The investigation obtained stationhouse video capturing the interior public entrance of the 60th Precinct Stationhouse from 12:30 p.m. until 4:30 p.m. on August 5, 2021. The footage shows § 87(2)(b) and § 87(2)(b) entering the stationhouse with an unidentified uniformed officer at 12:39 p.m. and being led upstairs, then the officer reappears downstairs alone shortly afterward. The stationhouse footage continues until 4:30 p.m. when the recording stops. At no point after 12:39 p.m. are § 87(2)(b) or § 87(2)(b) seen exiting the stationhouse. There is no footage captured from the Detective Interview Room and no alternative civilian entrances or exits to the stationhouse (Board Review 10).

After Det. Lindner locked § 87(2)(b) and § 87(2)(b) in the interview room, § 87(2)(b) began banging on the interview room door trying to get someone's attention to release them. § 87(2)(b) believed she heard officers laughing on the other side of the door but could not see anything outside the room. § 87(2)(b) approximated they were locked into the room for at least another hour before she called her husband to tell him they were locked inside an interview room at the station house, and he said he would come to the station house to speak with someone about releasing them. § 87(2)(b) and § 87(2)(b) estimated they were at the stationhouse for approximately four hours total before they were eventually released by Lt. Bobo. Neither woman saw Det. Lindner again after he initially left and locked the women in the room (Board Review 01 and 02).

Det. Lindner stated that after informing Lt. Bobo that his assistance was needed with § 87(2)(b) and § 87(2)(b) Det. Lindner denied having any further interaction with § 87(2)(b) or § 87(2)(b) and denied entering the interview room again on the incident date. Det. Lindner denied knowing the outcome of § 87(2)(b) and § 87(2)(b) time at the stationhouse and denied knowing how much time they were at the stationhouse in total. Det. Lindner denied knowing when § 87(2)(b) or § 87(2)(b) left the stationhouse. Det. Lindner denied knowing why he didn't request patrol officers to remove § 87(2)(b) and § 87(2)(b) from the stationhouse after stating he would. Det. Lindner denied recalling if the interview room was ever locked (Board Review 03).

Lt. Bobo did not recall if he was told by Det. Lindner of § 87(2)(b) and § 87(2)(b) presence at the stationhouse at any point on the incident date and stated he only recalled learning of § 87(2)(b) and § 87(2)(b) being inside the Detective Interview Room later on in the afternoon when § 87(2)(b) and § 87(2)(b) had an interaction with Det. Forrester regarding a cellphone. Lt. Bobo denied that § 87(2)(b) and § 87(2)(b) were ever detained and denied knowing how much time § 87(2)(b) and § 87(2)(b) spent at the stationhouse total (Board Review 06).

The cell phone audio recording made by § 87(2)(b) during her and § 87(2)(b) interview with Det. Lindner captures Det. Lindner telling § 87(2)(b) and § 87(2)(b) "I'll get patrol to come up here" and § 87(2)(b) asking, "Patrol for what?" Det. Lindner does not respond to the question and appears to leave the interview room. Det. Lindner is not recorded escorting § 87(2)(b) or § 87(2)(b) out of the interview room or furthering their discharge from the stationhouse (beginning at the 3:00 mark) (Board Review 09). During his CCRB testimony, Det. Lindner was played said audio recording and confirmed it was his voice on the audio file, speaking with § 87(2)(b) and § 87(2)(b) (Board Review 03).

DD5s for § 87(2)(b) note Det. Lindner as the primary investigator who took all steps involving the investigation between the first interaction with § 87(2)(b) on August 5, 2021, and her eventual arrest § 87(2)(b) DD5s and criminal complaint reports note that § 87(2)(b) was recorded as the victim of the assault until August 6, 2021, at which point § 87(2)(b) was determined to be the perpetrator after an interview with § 87(2)(b) and an I-CARD was generated in turn for § 87(2)(b) leading to her arrest § 87(2)(b) (Board Review 11 and 21).

There is no Command Log entry for the 60th Precinct on August 5, 2021, that notates § 87(2)(b) or § 87(2)(b) arrival or departure to the stationhouse. Within the Command Log, at 2:38 p.m. on August 5, 2021, the arrest of § 87(2)(b) is entered by PO Matthew Finn of the 60th Precinct with a charge of Assault in the Third Degree. § 87(2)(b) is transported to Brooklyn Central

Booking at 1:22 a.m. on August 6, 2021. There is no arrest record for § 87(2)(b) or § 87(2)(b) on the Command Log (Board Review 13).

Patrol Guide 212-11 finds that persons may only be detained while conducting a criminal investigation when reasonable suspicion that the person has committed, is committing, or is about to commit a felony or Penal Law misdemeanor exists. The suspect may be detained only as long as necessary to confirm or dispel your suspicion that she/he was committing, committed, or was about to commit a felony or Penal Law misdemeanor. Authority to detain the suspect ends when the tasks tied to the reason for the stop are completed or reasonably should have been completed (Board Review 14).

It is unrefuted that § 87(2)(b) and § 87(2)(b) first point of contact within the Detective Interview Room was with Det. Lindner, who was assigned § 87(2)(b) case and ultimately conducted the weeklong investigation into § 87(2)(b) incident. It is by a preponderance of the evidence, established from stationhouse video and civilian testimony, that § 87(2)(b) and § 87(2)(b) were released from the stationhouse after 4:30 p.m., at least four hours after originally arriving. Police testimony and documentation corroborate that on August 5, 2021, § 87(2)(b) and § 87(2)(b) were not suspected of any criminal activity and were not held at the stationhouse for any suspicion of criminality. § 87(2)(g)

As Det. Lindner was the investigator assigned to § 87(2)(b) case and therefore responsible for her and § 87(2)(b) movements while in the stationhouse, the investigation has credited that Det. Lindner was aware that § 87(2)(b) and § 87(2)(b) were held in the interview and not released after he left the interview room. § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended **Allegations C and D be Substantiated.**

Allegation (E) Abuse of Authority: Detective Darnell Forrester interfered with § 87(2)(b) use of a recording device.

After § 87(2)(b) got off the phone call with her husband, she began making a Facebook Live video from within the interview room telling her followers that she and § 87(2)(b) were being detained at the 60th Precinct stationhouse. Approximately ten minutes later, Det. Forrester entered the room and told § 87(2)(b) that she could not be recording, then reached towards her and attempted to grab her cell phone out of her hand. § 87(2)(b) pulled away and began yelling she and § 87(2)(b) had been locked in the room without cause and needed to be released. Lt. Bobo then rushed into the room and asked Det. Forrester what was going on, and Det. Forrester explained that he had seen § 87(2)(b) making a video recording. Lt. Bobo directed Det. Forrester to leave the room, which he did (Board Review 01 and 02).

Det. Forrester was inside the Detective Squad area when he walked past the interview room and observed on a monitor which was outside the room but captured the inside of the room, that § 87(2)(b) was using her cellphone. Det. Forrester stated that civilians are not allowed to use their phones while inside the interview room so upon seeing § 87(2)(b) using hers, he went into the room to inform that she could not use it. § 87(2)(b) was seated at the table in the middle of the room and had § 87(2)(b) seated next to her. § 87(2)(b) was holding her phone at her chest level and Det. Forrester could not see what § 87(2)(b) was using it for, but believed she was recording or video calling someone based on how she was holding the phone. Det. Forrester told § 87(2)(b) she could not use her phone inside the interview room and extended his arms towards § 87(2)(b) with an open palm so that she could hand him the phone. § 87(2)(b) refused to give her phone to Det. Forrester and pulled it close to her chest, turned away, and started yelling, though Det. Forrester could not recall what § 87(2)(b) was yelling. Lt. Bobo then entered the room and asked Det. Forrester what had happened. Det. Forrester told Lt. Bobo that § 87(2)(b) had gotten upset when Det. Forrester told her that she could not be using her cellphone and Lt. Bobo directed Det. Forrester to leave the room, which he did. Det. Forrester denied seeing any of Lt. Bobo's further interaction with § 87(2)(b) and § 87(2)(b). Det. Forrester denied ever attempting to grab the phone out of § 87(2)(b) hand or to remove it by force (Board Review 05).

While it is evident that Det. Forrester entered the interview room to stop § 87(2)(b) cellphone use, § 87(2)(g)

Therefore, it is recommended **Allegation E** be **Unsubstantiated**.

Allegation (F) Abuse of Authority: Lieutenant Alexander Bobo deleted information on § 87(2)(b) electronic device.

After Det. Forrester left the room, Lt. Bobo asked § 87(2)(b) and § 87(2)(b) what was going on and they explained that they had been held inside the interview room for hours. § 87(2)(b) told Lt. Bobo that they had only come to the stationhouse to file a report against § 87(2)(b). Lt. Bobo took several notes and left the room. Approximately fifteen minutes later, Lt. Bobo reentered the room and told § 87(2)(b) that he was going to release § 87(2)(b) and § 87(2)(b) "but only if you delete the videos" that she made while locked in the interview room. § 87(2)(b) consented, deleted the videos, then she and § 87(2)(b) were released. § 87(2)(b) stated she deleted the videos only because she didn't believe she had a choice in the matter and wanted to leave. When § 87(2)(b) and § 87(2)(b) were released, they were not provided any paperwork or information regarding their visit to the precinct (Board Review 01 and 02).

After directing Det. Forrester to leave the interview room, Lt. Bobo told § 87(2)(b) that she could not use her phone in the stationhouse and § 87(2)(b) consented by putting her phone away. Lt. Bobo then left the interview room and did not recall having any further interaction with § 87(2)(b) or § 87(2)(b) before doing so. Approximately ten-minutes later, Lt. Bobo was approached by an officer who told Lt. Bobo that § 87(2)(b) had posted a video from within the stationhouse on Facebook. Lt. Bobo did not recall who this officer was, and Lt. Bobo denied watching the video himself or learning the contents of the video § 87(2)(b) allegedly posted. Lt. Bobo re-entered the Detective Interview Room where § 87(2)(b) and § 87(2)(b) were still seated. Lt. Bobo did not recall if the door was locked and did not recall if either § 87(2)(b) or § 87(2)(b) ever complained of being locked in the room. Lt. Bobo denied knowing if § 87(2)(b) or § 87(2)(b) were ever locked in the interview room. Lt. Bobo told § 87(2)(b) that she needed to delete the video from Facebook and Lt. Bobo denied telling § 87(2)(b) that she

would be arrested if she did not. Lt. Bobo told the investigator that § 87(2)(b) needed to delete the video for her own safety, because someone may think that she or § 87(2)(b) are cooperating with police if people see them post a video at the stationhouse, but Lt. Bobo denied conveying this information to § 87(2)(b) and stated that he only told her to delete the video. § 87(2)(b) agreed to delete the video and proceeded to do so, at which point Lt. Bobo left the interview room. Lt. Bobo denied having any further contact with either § 87(2)(b) or § 87(2)(b) after he left the room. Lt. Bobo did not see when either § 87(2)(b) or § 87(2)(b) left the stationhouse and denied knowing how long § 87(2)(b) and § 87(2)(b) were at the stationhouse total (Board Review 06).

Patrol Guide 203-29 states that individuals are not allowed to photograph and/or record police activity within Department facilities and that members of service may order any member of the public who is photographing or recording within department facilities to stop such activity but that members of service must not delete any pictures or recordings from observer's recording device or order observer to delete such pictures or recordings (Board Review 15).

It is undisputed that Lt. Bobo directed § 87(2)(b) to delete the video recording she had made on her cellphone. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended **Allegation H** be **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 16).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 17).
- Detective Vincent Lindner has been a member of service for 14 years and has been a subject in 17 CCRB complaints and 34 allegations, none of which were substantiated. § 87(2)(g)
- Detective Darnell Forrester has been a member of service for 11 years and has been a subject in 11 CCRB complaints and 23 allegations, of which one was substantiated:
 - #201501935 involved a substantiated allegation of Abuse: Stop against Det. Forrester. The Board recommended Command Discipline – A and the NYPD imposed Command Discipline – A. § 87(2)(g)
- Lt. Alexander Bobo has been a member of service for 13 years and has been a subject in 32 CCRB complaints and 87 allegations, of which 13 were substantiated:
 - #200915588 involved a substantiated allegation of Abuse: Stop against Lt. Bobo. The Board recommended Command Discipline – B and the NYPD imposed Command Discipline – B.
 - #201212122 involved a substantiated allegation of Abuse: Frisk and a substantiated allegation of Abuse: Search against Lt. Bobo. The Board recommended Charges and APU Dismissed the allegations.
 - #201212149 involved a substantiated allegation of Abuse: Stop against Lt. Bobo. The Board recommended Charges, which APU found guilty, and the NYPD imposed the forfeit of 2 vacation days.
 - #201908128 involved a substantiated allegation of Abuse: Entry and a substantiated allegation of Abuse: Threat of Arrest against Lt. Bobo. The Board recommended

Formalized Training and Command Discipline – A, and the NYPD imposed Command Discipline – A.

- #202002799 involved a substantiated allegation of Abuse: Threat of force against Lt. Bobo. The Board recommended Command Discipline – B and the NYPD has not yet imposed discipline.
- #202006972 involved a substantiated allegation of Abuse: Entry and a substantiated allegation of Abuse: Search against Lt. Bobo. The Board recommended Command Discipline – B, and the NYPD took no disciplinary action with no penalty.
- #202008138 involved a substantiated allegation of Abuse: Entry against Lt. Bobo. The Board recommended Charges and there not yet been an APU trial.
- #202008138 involved a substantiated allegation of Abuse: Failure to provide RTKA card, a substantiated allegation of Abuse: Search of Premises, and a substantiated allegation of Discourtesy: Word against Lt. Bobo. The Board recommended Charges and there not yet been an APU trial.
- Lt. Bobo has been a member of service for 13 years and has been a subject in 32 CCRB complaints and 87 allegations. Nine allegations which involve Fourth-Amendment violations have been substantiated against Lt. Bobo; two substantiated allegations of Abuse: Stop, a substantiated allegation of Abuse: Frisk, a substantiated allegation of Abuse: Search of Person, three substantiated allegations of Abuse: Entry of Premises, and two substantiated allegations of Abuse: Search of Premises. In the current case, it was alleged Lt. Bobo violated three more Fourth-Amendment allegations, with two allegations of Abuse: Other – Detainment and one of Abuse – Electronic device information deletion.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of November 7, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 18).

● [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

■ [REDACTED]

■ [REDACTED]

■ [REDACTED]

Squad: 11

Investigator:	<u>Cloey Romans</u>	<u>Inv. Cloey Romans</u>	<u>12/02/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Edwin Pena</u>	<u>IM Edwin Pena</u>	<u>12/02/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date